

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)**

WRIT PETITION NO. 494 OF 2022

In the matter of:

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh.

-And-

In the matter of:

Md. Rafiqul Islam Tipu.

..... Petitioner.

-Versus-

Manager Director, Titas Gas
Transmission and Distribution Company
Limited and others.

..... Respondents.

Mr. Md. Tashadduk Hasan, Advocate

For the petitioner.

Mr. Abul Bashar Tutul, Advocate

..For the respondent No.1.

Present:

Mr. Justice Md. Khasruzzaman

and

Mr. Justice Md. Khairul Alam

Heard on: 30.05.2023 and

Judgment on: 04.06.2023

Md. Khairul Alam, J.

This Rule Nisi was issued calling upon the respondents to show cause as to why disconnection of the gas connection dated 29.12.2021 of the M/S Dipti Dyeing and Knit Finishing Mills Limited of the petitioner should not be declared to be without lawful authority and of no legal effect.

Relevant facts for disposal of the Rule Nisi are that the petitioner Md. Rafiqul Islam Tipu is the Managing Directed of M/S Dipti Dyeing and Knit Finishing Mills Limited (shortly, the factory), a private limited

company, engaged in the business of textile, dyeing, printing, and finishing products, situated at Dapa Idrakpur, Police Station-Fatullah, District-Narayangonj. To generate the business products, the factory entered into an agreement with the Titas Gas Transmission and Distribution Company Ltd. (shortly, the Gas Company), for the supply of gas. On the basis of said agreement, the factory has been consuming gas on regular payment of bills. On 29.12.2021, a vigilant team of the Gas Company disconnected the gas connection of the factory allegedly due to non-payment of bills.

Being aggrieved thereby the petitioner moved before this Court and obtained the Rule.

Respondent No. 1- the Gas Company is contesting the Rule but has not filed any affidavit-in-opposition denying the material allegations made in the writ petition.

Mr. Tashadduk Hasan, the learned Advocate appearing for the petitioner submits that at the time of issuance of the Rule Nisi, this Court directed the respondents to resume gas connection subject to payment of Taka 10,00,000/-. Accordingly, the petitioner deposited the said amount; the gas connection was resumed and the company is consuming the gas on payment of regular bills. Therefore, the Rule is required to be made absolute; otherwise, a multiplicity will arise.

Mr. Abul Bashar Tatul, the learned Advocate appearing for respondent No.1 submits that section 40 of the বাংলাদেশ এনার্জি রেগুলেটরী কমিশন আইন, ২০০৩ incorporates the provision for settling the dispute

between the consumer and the gas company thorough Energy Regulatory Commission and in that regard, the Bangladesh Energy Regulatory Commission Dispute Settlement Regulation, 2014 has been framed. Therefore, the present writ petition regarding the dispute between the consumer and the gas company is not maintainable. In support of the submission, he refers to an unreported judgment and order passed in Writ Petition No.1068 of 2007 along with a bunch writ petitions. He next submits that as per the direction of this Court passed in this writ petition, the gas connection of the petitioner was resumed but subsequently the same was disconnected for a further default. Challenging the legality of the said disconnection the petitioner filed Writ Petition No. 9220 of 2022 which is still pending, therefore, this Rule Nisi has become infructuous.

We have gone through the writ petition and other materials on record.

Admittedly, the petitioner filed this writ petition challenging the disconnection of the gas connection of the factory dated 29.12.2021. From the record, it appears that at the time of issuance of the Rule Nisi, this Court directed the respondents to resume gas connection subject to payment of Taka 10,00,000/-. Accordingly, the petitioner deposited the said amount; the gas connection was resumed but subsequently the same was disconnected again on 04.07.2022 for a further default. Challenging the legality of the said subsequent disconnection dated 04.07.2022 the petitioner filed another writ petition being Writ Petition No. 9220 of 2022 which is still pending.

Be that as it may, admittedly the Gas Company is a licensee of the Energy Regulatory Commission and the factory is the consumer of the Gas Company. Section 40 of the “বাংলাদেশ এনার্জি রেগুলেটরী কমিশন আইন, ২০০৩” provides provision for settling the dispute between the licensee of the Energy Regulatory Commission and the consumer of the licensee through the Energy Regulatory Commission. Since the impugned disputes under the present Rule are between the licensee of the Energy Regulatory Commission and the consumer of the licensee, therefore, the same has to be settled by the Energy Regulatory Commission.

In the above facts and circumstances, we are of the view that this writ petition is not mentionable for having an alternative forum.

Therefore, the Rule is discharged as being not maintainable.

However, if so advised, the petitioner is at liberty to file appropriate application before the Bangladesh Energy Regulatory Commission.

Communicate a copy of this judgment and order to the respondent No. 1 at once.

Md. Khasruzzaman, *J*

I agree.